

Introduction

Fundamental rights are basic human rights that are given to every citizen by the constitution of a country. These rights are essential for the development, dignity, and freedom of individuals in society. Without fundamental rights, people cannot live a free and secure life.

Definition of Fundamental Rights

Fundamental rights are the rights that are legally protected by the constitution and cannot be taken away by the government without a valid legal reason. These rights ensure equality, freedom, justice, and protection for all citizens.

Explanation of Fundamental Rights

Fundamental rights include basic freedoms such as the right to life, liberty, education, speech, religion, property, and equality. These rights help individuals to develop their personality and live respectfully in society.

These rights also limit the power of the government so that it cannot act unfairly against citizens. If any law violates fundamental rights, it is considered unconstitutional.

Importance of Fundamental Rights

Fundamental rights are very important because they:

- * Protect individuals from injustice and discrimination.
- * Ensure equality among all citizens.
- * Promote freedom of speech and expression.
- * Maintain peace and stability in society.
- * Help in the development of a democratic system.

Conclusion

Fundamental rights are the foundation of a fair and democratic society. They guarantee freedom, equality, and justice for all individuals and protect them from misuse of power.

Fundamental Rights and Constitution of Pakistan 1973

Introduction

The Constitution of Pakistan 1973 is the supreme law of the country. It provides a complete framework for governance and ensures the protection of fundamental rights for all citizens. It establishes Pakistan as a democratic state where law, justice, and equality are highly valued.

Fundamental Rights in the Constitution of Pakistan

The Constitution of 1973 includes a special chapter (Articles 8 to 28) that defines fundamental rights. These rights are given to every citizen regardless of race, religion, language, or gender.

Some important rights include:

- * Right to life and security (Article 9)
- * Freedom of speech (Article 19)
- * Freedom of religion (Article 20)
- * Equality of citizens (Article 25)
- * Right to education (Article 25A)
- * Protection of property (Article 23 & 24)

These rights ensure that every citizen can live freely and with dignity.

Role of Constitution in Protecting Rights

The Constitution of Pakistan plays an important role in protecting fundamental rights by:

- * Making sure no law violates these rights (Article 8).
- * Giving courts the authority to protect citizens' rights.
- * Limiting the powers of government institutions.
- * Ensuring justice and equality for all.

If any fundamental right is violated, citizens can approach the courts for justice.

Importance of Fundamental Rights in Pakistan

Fundamental rights are important in Pakistan because they:

- * Strengthen democracy.
- * Protect citizens from injustice.
- * Promote equality and social justice.
- * Support peaceful and stable society.
- * Encourage development and education.

Conclusion

The Constitution of Pakistan 1973 guarantees fundamental rights to all citizens. These rights are essential for building a just, democratic, and peaceful society where everyone can live with freedom and dignity.

****Articles 8 to 28 of the Constitution of Pakistan 1973** explained in ****

Articles 8 to 28 of the Constitution of Pakistan (Fundamental Rights)

Article 8 – Laws Inconsistent with Fundamental Rights

This article states that any law which is against fundamental rights will be considered void. It means the Constitution is the supreme law and no law can violate basic human rights.

Article 9 – Security of Person

Every citizen has the right to life and personal security. No person can be deprived of life or liberty except according to law.

Article 10 – Safeguards as to Arrest and Detention

This article protects citizens from illegal arrest. A person who is arrested must be informed of the reasons and produced before a magistrate within 24 hours.

Article 10A – Right to Fair Trial

Every citizen has the right to a fair trial and due process of law. Courts must ensure justice without bias or unfair treatment.

Article 11 – Prohibition of Slavery and Forced Labour

Slavery and forced labour are completely prohibited in Pakistan. No person can be forced to work against their will.

Article 12 – Protection against Retrospective Punishment

A person cannot be punished for an act that was not a crime at the time it was committed. Laws cannot be applied backward.

Article 13 – Protection against Double Punishment

No person can be punished more than once for the same offence. It ensures fairness and justice in the legal system.

**Article 14 – Inviolability of Dignity of Man**

The dignity of every person is protected by law. No one can be tortured or treated in an inhuman or degrading way.

**Article 15 – Freedom of Movement**

Every citizen has the right to move freely throughout Pakistan and can reside in any part of the country.

**Article 16 – Freedom of Assembly**

Citizens have the right to assemble peacefully. They can hold meetings, protests, and gatherings without violence.

**Article 17 – Freedom of Association**

Every person has the right to form or join associations, political parties, or unions for legal purposes.

**Article 18 – Freedom of Trade, Business or Profession**

Every citizen has the freedom to choose any profession or business according to their choice.

**Article 19 – Freedom of Speech**

Every citizen has the right to express their opinions freely, but subject to reasonable restrictions under law.

**Article 19A – Right to Information**

Citizens have the right to access information in matters of public importance from government institutions.

**Article 20 – Freedom of Religion**

Every citizen is free to practice, follow, and promote their religion without interference.

**Article 21 – Protection against Tax for Religious Purposes**

No person can be forced to pay taxes for promoting a religion other than their own belief.

**Article 22 – Safeguard of Religious Education**

No student can be forced to receive religious instruction that is not related to their own religion.

**Article 23 – Right to Property**

Every citizen has the right to acquire, hold, and dispose of property in any lawful manner.

**Article 24 – Protection of Property Rights**

No person's property can be taken without legal authority and proper compensation.

**Article 25 – Equality of Citizens**

All citizens are equal before the law and are entitled to equal protection without discrimination.

Article 25A – Right to Education

The state must provide free and compulsory education to children aged 5 to 16 years.

Article 26 – Non-Discrimination in Public Places

All citizens have equal access to public places such as parks, schools, and hotels without discrimination.

Article 27 – Safeguard against Discrimination in Services

No citizen can be discriminated against in government jobs on the basis of religion, caste, gender, or race.

Article 28 – Preservation of Language, Script and Culture

Every community has the right to preserve and promote its language, culture, and traditions.

Conclusion

Articles 8 to 28 of the Constitution of Pakistan guarantee fundamental rights to all citizens. These rights ensure freedom, equality, justice, and protection, which are essential for a democratic and peaceful society.